

[doc. web n. 10072669]

Provision of October 17, 2024

Register of provisions

n. 619 of October 17, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia, and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European

Parliament and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to the

processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,

containing the "Code regarding the protection of personal data,

containing provisions for the adaptation of the

national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers assigned to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web

n. 9107633 (hereinafter "Guarantor Regulation No.

1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and functioning of the

office of the Guarantor for the protection of personal data, on www.gpdp.it, doc.

web n. 1098801;

REPORTING Attorney Guido Scorza;

WHEREAS

1. The complaint

With a complaint submitted to the Authority, Mr. XX through

his lawyer, Attorney XX, reported

some violations of the regulations concerning

the protection of personal data by Dr.

Giancarlo Francini.

In particular, the complainant stated, regarding the recording of

psychotherapy sessions conducted with audio

tools (which took place on September 6 and 16, 2019 at the

office of the aforementioned doctor), that he had not received

"any information that made him aware, among

other things, of what the processing methods were

and what the legal basis for the processing methods was” and that he had not received a response to Mr. XX's request, in which the same complainant had asked “(...) what data was in possession of (...) (Dr. Francini)”, as well as “a copy of the recordings, the signed privacy documentation and/or present at (...) the office (information pursuant to Article 13 of the Regulation) and the methods of storage of the recordings and/or any dissemination thereof.”

2. The investigative activity and the Department's assessments on the conduct and processing carried out. Notification of the violation referred to in Article 166, paragraph 5, of the Code
Following this complaint, the Office, with a note of XX (prot. n. XX), invited the aforementioned doctor, data controller, to provide information, pursuant to Article 157 of the Code, regarding the reasons for the lack of response to the interested party, as well as the alleged omission of the informational obligations referred to in Article 13 of the Regulation.

No response followed this request, and, noting this omission, the Office, with an act of XX (prot. n. XX), notified the data controller, pursuant to Article 166 of the Code, of the violation of Article 157 of the Code.

At the same time, with a separate note, of XX (prot. n. XX), the Office reiterated the request for information already sent, as mentioned above, with the cited note of XX (prot. n. XX). The data controller, on XX, provided a response, stating, among other things that:

- “what was requested (by the interested party) would have been provided and submitted for examination and signature by Attorney XX at the third meeting or when the undersigned therapist would have verified that the path that the parties intended to undertake would continue in its course. In fact, the spouses visited this therapist only twice to mutually verify the validity of the path they had undertaken through an analysis of the request that could “open” or not to the same. In fact, this did not happen, and the undersigned did not consider it appropriate to apply what is subject before the start of therapy”;
- “regarding the recordings, as was reported to Attorney XX, none were made and are not in the archive, also because, if they had been made, they would be destroyed 6 months after the end of the path; it is specified, however, that they could in any case be released to the party only with the consent of both. In particular, regarding the elements referred to in Article 83, paragraph 2, it is specified that we were at that time, still in the preparatory phase for the work to be done which would have involved the collection of data although the recordings had not been initiated.”

In relation to the documentation on file and to what

was stated by the data controller, the Office, with an act of XX (prot. n. XX), initiated, pursuant to Article 166, paragraph 5, of the Code, the procedure for the adoption of the measures referred to in Article 58, paragraph 2 of the Regulation concerning Dr. Giancarlo Francini, as the data controller, inviting him to submit defensive writings or documents to the Authority, or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, Law No. 689 of November 24, 1981).

Following what emerged, the Office deemed that the aforementioned doctor had not responded to the request for the exercise of the rights of the data subject, as per Article 15 of the Regulation, within the terms provided by Article 12 of the same Regulation, violating the principle set forth in Article 5, letter a) of the Regulation, as well as the informational obligations under Article 13 of the same Regulation for failing to provide the data subject with information regarding the personal data processed.

With the aforementioned act of XX (protocol No. XX), the Authority ordered the consolidation of the ongoing procedure with that already opened by act of XX (protocol No. XX) concerning the failure to respond to the Authority's request for information, in violation of Article 157 of the Code; this, pursuant to Article 10, paragraph 4, of Regulation No. 1/2019, concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, as it pertains to cases regarding the same matter and the same data controller.

In this context, the Authority also highlighted that it had taken note of the fact that the data controller, regarding the initiation of the procedure for the failure to respond to the request for information under Article 157 of the Code, did not avail himself of the opportunity to submit defensive writings or documents concerning the aforementioned violation (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

Conversely, regarding the allegations made in the initiation of the sanctioning procedure of XX (protocol No. XX), the data controller submitted a defensive memorandum with a note dated XX, in which he represented, among other things, that:

“At the time of the first meeting with the (...) (complainant) (and the lady), I verbally requested authorization for the video recording of the meeting. This request was specifically motivated to collect the material that emerged from the meeting and to be able to work on it in view of the subsequent meeting, without having to take notes during the session. This approach is necessary to avoid interrupting the listening of the particularly painful or otherwise important situation from the emotional point of view of those who seek psychotherapeutic therapy or related services. At the time, I also specified that everything was covered by professional secrecy and that the life of the recordings was strictly connected to the duration of any treatment”;

“After receiving (verbally) such authorization, I proceeded with the recording. Therefore, I informed the client about the recordings and their legality subject to specific authorization, and their processing. The meeting was configured as a consultation phase comprising at least 4 meetings: in reality, the treatment did not commence due to a specific request for interruption by (...) (the data subject) himself”;

“Today, individuals who come to my office receive clear and specific documentation on data processing and other matters, including any recordings, before entering the office, directly in the waiting room. Although belatedly, I communicated to lawyer XX (legal representative of (...) (the complainant)) that in 2023 I no longer possessed the recordings since, as I explained to Mr. XX at the time of our first meeting, the recordings are destroyed within 6 months from the interruption of treatment and no dissemination is foreseen unless there is specific authorization from the data subject and only for potential educational or research purposes”;

“I realize that I did not have any documentation signed at that time, as I believed the verbal description and the verbal authorization of the client himself were sufficient. For several years now, a careful and

precise process of informing clients has been part of the procedure, along with their conscious adherence through signed forms by all family members”;

“I acknowledge what has been attributed to me by the Authority, and I point out that the errors made at that time have been remedied by using appropriate forms and refined through specific communications and updates implemented by our Professional Order. I believe that certain lapses of mine back then, certainly stemming from the trust placed in clients and the pursuit of a service as sensitive as possible to their listening and welcoming needs, should be considered, in my view, absolutely in good faith.”

Based on what was stated by the data controller in the aforementioned defensive memorandum, the Office, with a note dated XX (protocol No. XX), requested - pursuant to Article 157 of the Code - further informational elements from Dr. Francini, with particular reference to the note regarding the communication made to Lawyer XX, albeit belatedly, as asserted by the data controller; the controller, on XX, responded to this request by sending a copy of the note addressed to the complainant's lawyer, dated XX.

3. Outcome of the investigative activity

Having taken note of what was represented in the documentation on file and in the defensive memorandum, highlighting that the processing of personal data must occur in compliance with the applicable legislation on personal data protection and, in particular, the provisions of Regulation and the Code, the following is observed.

3.1 Failure to comply with the principle of transparency

(art. 5, par. 1, lett. a) and the information obligations referred to in art. 13 of the Regulation)

It is first noted that, pursuant to Law No. 56 of February 18, 1989 (as stated in art. 9, paragraph 4, Law No. 3 of January 11, 2018), “the profession of psychologist (...) is included among the health professions referred to in the legislative decree of the Provisional Head of State of September 13, 1946, No. 233, ratified by Law No. 561 of April 17, 1956” (see provision of May 19, 2022, web doc No. 9774696, titled “Opinion on the draft decree of the Minister of Health, in agreement with the Minister of Economy and Finance, concerning the contribution to support expenses related to psychotherapy sessions, pursuant to art. 1-quater, paragraph 3, of Legislative Decree No. 228/2021” and, among others, regarding the identification of new subjects obliged to transmit to the TS System data relating to healthcare expenses incurred by individuals for the pre-filled declaration, provision of July 28, 2016, No. 332, web doc No. 5407413, titled “Opinion on the draft decree of the MEF which defines the terms and methods for the telematic transmission to the Revenue Agency of data relating to healthcare expenses other than those provided for by Legislative Decree No. 175/2014 and veterinary expenses”; see also provision of September 29, 2021, No. 358, web doc No. 9720448 and, lastly, provision of November 24, 2022, No. 387, web doc No. 9844780).

In consideration of the above, given that there is a processing of personal data of the interested party by Dr. Francini, the data controller, regarding what was complained of by the latter in the complaint, namely that he had not received “any information that made him aware, among other things, of what the processing methods were and what the legal basis for the processing methods was,” the data controller should have - based on the principle set forth in art. 5, par. 1, lett. a) of the Regulation, according to which the data controller is required to process personal data collected “(...) in a lawful, fair, and transparent manner in relation to the interested party (“lawfulness, fairness, and transparency”)), as well as based on what is provided by art. 13 of the Regulation - provided information that made the interested party aware of the information regarding the processing.

In fact, what was represented by Dr. Francini regarding the fact that he had not provided the information believing that the therapeutic path with the complainant and his wife had not yet begun (see note from the data controller dated XX: “(...) what was requested (by the interested party) would have been provided and submitted for examination (...) at the third meeting or when the undersigned therapist would have verified that the path that the parties intended to undertake would continue in its course (...)), does not exclude responsibility for such omission. The fact that he conducted the two sessions considered preparatory to the start of the therapeutic path with the complainant implies, in fact, the knowledge of the issues highlighted by the patient for which psychotherapy services had been

requested, involving the collection of personal data, in this case relating to health - and, therefore, processing pursuant to art. 4, paragraph 1, point 2, of the Regulation - in relation to which the data controller should have provided the information referred to in art. 13 of the Regulation.

3.2 Failure to respond to the request to exercise the right of access (art. 12, in relation to art. 15 of the Regulation)

Based on the elements acquired following the investigative activity, as well as the subsequent evaluations of this Department, regarding the matter complained of by the complainant, it appears that the data controller did not respond to the request for access to the personal data of the interested party, as referred to in art. 15 of the Regulation, within the terms provided by art. 12 of the same Regulation.

Specifically, to the request made by the interested party, through his lawyer, on XX, Dr. Francini did not provide a response within the terms provided by art. 12 of the Regulation. The data controller responded to the complainant's lawyer with a note dated XX.

3.3 Failure to respond to the Authority's request for information (art. 157 in relation to art. 166, paragraph 2, of the Code)

Art. 157 of the Code provides that "Within the powers referred to in article 58 of the Regulation and for the performance of its tasks, the Guarantor may request the data controller, the processor, the representative of the controller or the processor, the interested party, or even third parties to provide information and to exhibit documents also with reference to the content of databases."

With reference to the matter in question, since Dr. Francini did not respond to the information requested by the Authority in a note dated XX (prot. No. XX) - sent via PEC to the address giancarlofrancini@psyppec.it - after conducting the necessary checks at the Office that performs the registration service at the Authority, the violation of art. 157 of the Code is confirmed.

4. Conclusions.

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation and considering that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to art. 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor," the elements provided by

****Data Controller in the Defense Memorandum****

As mentioned above, although deserving of consideration, do not allow for overcoming the objections notified by the Office with the aforementioned initiation act of the procedure, nor do any of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply.

Therefore, based on all that has been stated, in light of the current state of the acts and the declarations provided, in relation to the matter in question, the illegality of the processing carried out by Dr. Giancarlo Francini, data controller, is established, who has engaged in conduct:

- a) in violation of the principle of transparency referred to in Article 5, paragraph 1, letter a) and the informational obligations referred to in Article 13 of the Regulation for failing to provide the data subject with information regarding the personal data processed;
- b) in violation of Article 12, in relation to Article 15 of the Regulation, for failing to provide a response within the deadlines set by the aforementioned Article 12, to the request with which the data subject exercised the right of access to data pursuant to Article 15 of the Regulation;
- c) in violation of Article 157 of the Code for failing to respond to the request for information from the Garante of XX (protocol no. XX).

The prerequisites for the adoption of further corrective measures referred to in Article 58, paragraph 2, of the Regulation do not exist, considering that the conduct has exhausted its effects, also concerning the violation related to the failure to respond to the request for access to personal data referred to in Articles 12 in relation to Article 15 of the Regulation, given that, with reference to the subject of the request, the data controller has stated that he has destroyed the recordings in accordance with the declared retention times and that the data controller has responded to the lawyer of the data subject

with a note dated XX.

Finally, it is believed that the prerequisites of Article 17 of the Garante Regulation No. 1/2019 are met.

****5.** Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).******

The violation of Article 5, paragraph 1, letter a) of the Regulation, of Articles 12, paragraph 3 - in relation to Article 15 - and 13 of the Regulation, as well as Article 157 of the Code, caused by the conduct carried out by the data controller, is subject to the application of the administrative pecuniary sanction referred to in Article 83, paragraph 5, of the Regulation. In particular, with reference to the violation of Article 157 of the Code, the application of Article 83, paragraph 5 of the Regulation is provided for by Article 166, paragraph 2, of the same Code.

The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83 of the Regulation, by adopting an injunction order (Article 18 of Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by Dr. Giancarlo Francini, data controller, whose illegality has been established, as stated above.

In this case, it has been assessed that Dr. Francini has engaged in distinct conduct (failure to respond to the request for information pursuant to Article 157 of the Code and failure to comply with the principle of transparency and informational obligations). In calculating the administrative sanction, in application of Article 83, paragraph 3, of the Regulation, the violations referred to in points a) and b) of the previous paragraph 4 are considered together, as they relate to the non-compliance with the principle of transparency and informational obligations towards the same data subject.

****5.1** The conduct in violation of the principle of transparency referred to in Article 5, paragraph 1, letter a), of the Regulation, the informational obligations referred to in Article 13 of the Regulation, as well as Article 12, in relation to Article 15, of the same Regulation referred to in the previous paragraph 4, letters a) and b)******

With reference to the violation of the principle of transparency referred to in Article 5, paragraph 1, letter a) and the informational obligations referred to in Article 13, as well as Article 12, in relation to Article 15 of the Regulation, subject to the administrative pecuniary sanction referred to in Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified taking into account the maximum statutory limit established by the Regulation, equal to the maximum limit of €20,000,000.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is stated that, in the case at hand, the circumstances listed below have been taken into account.

In this circumstance, the level of severity, based on the elements of Article 83, paragraph 2, letters a), b), and g) of the Regulation, is to be considered high, given that the data controller did not provide the data subject with the information referred to in Article 13 of the Regulation, nor did he respond to the request with which the same data subject exercised the right of access pursuant to Article 15, within the deadlines set by Article 12 of the Regulation, but only after the complaint was submitted to the Garante, with a note dated XX.

Finally, the additional elements provided for by Article 83, paragraph 2, of the Regulation have been considered, and in particular, that no violations have been committed by the data controller. violations relevant (art. 83, par. 2, lett. e) of the Regulation).

In light of the aforementioned elements, assessed as a whole, regarding the conduct of the data controller in the matter at hand in violation of the principle of transparency referred to in art. 5, par. 1, lett. a) and the informational obligations set forth in art. 13, as well as art. 12, in relation to art. 15 of the

Regulation, it is deemed appropriate to determine the amount of the monetary sanction at the sum of euro 6,000.00 (six thousand/00).

5.2 The conduct in violation of art. 157 of the Code as per the previous par. 4, lett. c)

Considering that the violation of art. 157 of the Code, pursuant to art. 166, par. 2, of the same Code is subject to the administrative monetary sanction referred to in art. 83, par. 5, of the Regulation, the total amount of the sanction is to be quantified taking into account the maximum statutory limit established by the Regulation, amounting to a maximum limit of 20,000,000 euros.

With reference to the elements listed in art. 83, par. 2 of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the sanction must be "effective, proportionate and dissuasive in each individual case" (art. 83, par. 1 of the Regulation), it is represented that, in the case at hand, the following circumstances have been taken into account.

It is believed that, in this circumstance, the level of severity, based on the elements of art. 83, par. 2, lett. a) and b) of the Regulation, is to be considered mild, given that the data controller has nonetheless responded to the repeated request for information made by the Authority of XX.

Furthermore, the additional elements provided for by art. 83, par. 2, of the Regulation have been considered, in particular, that no relevant violations have been committed by the data controller (art. 83, par. 2, lett. e) of the Regulation).

In light of the aforementioned elements, assessed as a whole, for the violation of art. 157 of the Code by the data controller in the matter at hand, it is deemed appropriate to determine the amount of the monetary sanction at the sum of euro 500.00 (five hundred/00).

* * *

In light of the above, the total quantification of the sanction amounts to euro 6,500.00 (six thousand five hundred/00) and it is believed that this sanction is effective, proportionate, and dissuasive pursuant to art. 83, par. 1, of the Regulation.

5.3. Additional assessments and accessory sanction of the publication of the injunction order

Considering the nature of the health-related data whose processing is the subject of the matter at hand, as well as the omission of the data controller regarding transparency obligations and the matter of the rights of the data subjects, having responded to the data subject only after the complaint was made to the Guarantor, it is also deemed that pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Guarantor's Regulation no. 1/2019, the publication of this section, containing the injunction order, on the Guarantor's website should be carried out.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

declares the unlawfulness of the processing of personal data carried out by Dr. Giancarlo Francini, C.F. XX, for the violation of the principle of transparency referred to in art. 5, par. 1, lett. a, of the Regulation, the informational obligations set forth in art. 13 of the Regulation, art. 12, in relation to art. 15, of the same Regulation, as well as art. 157 of the Code, in the terms stated in the reasoning;

ORDERS

pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, Dr. Giancarlo Francini, data controller, to pay the sum of euro 6,500.00 (six thousand five hundred/00) as an administrative monetary sanction for the violations indicated in this provision;

COMMANDS

therefore, the aforementioned data controller, to pay the sum of euro 6,500.00 (six thousand five hundred/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/198. It is represented that pursuant to art. 166, par. 8 of the Code, the possibility for the offender to settle the dispute by paying - according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term referred to in art. 10, par. 3, of legislative decree no. 150 of September 1, 2011 provided for the filing of the appeal as indicated below remains unaffected.

DISPOSES

- pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Guarantor's Regulation no. 1/2019, the publication of the injunction order on the Guarantor's website;

- pursuant to art. 154-bis, par. 3, of the Code and art. 37 of the Guarantor's Regulation no. 1/2019, the

publication of this provision on the website of the Authority;

- pursuant to art. 17 of the Guarantor's Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code and 10 of legislative decree no. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with an application submitted to the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, October 17, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei